

SENATE BILL 1440

By Bowling

AN ACT to amend Chapter 553 of the Acts of 1903; as amended by Chapter 311 of the Private Acts of 1974 and Chapter 233 of the Private Acts of 1978; and any other acts amendatory thereto, relative to the city judge of the City of Tullahoma.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 553 of the Acts of 1903, as amended by Chapter 311 of the Private Acts of 1974, and Chapter 233 of the Private Acts of 1978, and any other acts amendatory thereto, is amended by deleting the first paragraph of Section 16B and substituting instead:

Sec. 16B. Election, compensation, and qualifications of city judge. The term of the City Judge of the City of Tullahoma holding office on the effective date of this act who was elected pursuant to Tennessee Code Annotated, Section 16-18-203, is extended for one (1) year from when it expires in August 2025 to the first Thursday in August 2026. Thereafter the City Judge of the City of Tullahoma is elected at the same time as members of the Board of Mayor and Aldermen are elected at the biannual municipal elections held on the first Thursday in August in each even-numbered year. Beginning in the year 2026, the City Judge shall be elected for a term of eight (8) years and thereafter there shall be an election for said office every eight (8) years. The City Judge's compensation shall be established from time to time by the Board of Mayor and Aldermen by ordinance. The Judge shall be elected by the members of the public at-large qualified to vote in municipal elections. The Judge shall have such duties and powers as are prescribed by the Code of the City of Tullahoma and by any ordinances enacted pursuant thereto. The Judge shall be a practicing attorney in good standing, admitted to practice before the courts of the State of Tennessee, and shall have been a resident of and maintain his or her domicile in the City of Tullahoma for one (1) year prior

to said election. The determination of residency shall be as established as set forth in Tennessee Code Annotated, Section 2-2-122.

SECTION 2. If any provision of this act or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to that end the provisions of this act are declared to be severable.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Tullahoma. Its approval or non-approval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.